SYSTEM ANNOTATED REFERENCE CONTRACT 03: EXCLUSIVE SONGWRITER & MUSIC PUBLISHING AGREEMENT

> SYSTEM METADATA & EVALUATION HEADER
> - Document ID: SYS-ANNOT-03
> - Contract Type: publishing (Exclusive Songwriter & Music Publishing Agreement)
> - Jurisdiction: KE (Republic of Kenya)
> - Counterparties: Simba Music Publishing & Sync Admin Limited ("Publisher") and Amina Wanjiru p/k/a "Mina W." ("Writer")
> - Primary Reference Standards Cited:
> - KECOBO-PUB-STD-01: Kenya Copyright Board (KECOBO) Advisory Copyright Contract Manual · Music Publishing & Songwriter Agreement Standard (CC BY 4.0 / Statutory Guidance)
> - KE-CAP130-SEC26-33: Kenya Copyright Act, Cap. 130 (Musical Works, Collective Management Organizations MCSK, Moral Rights & Assignment Limitations)
> - WIPO-PUB-STD-03: WIPO How to Make a Living from Music · Songwriting, Publishing Administration & Co-Publishing Standard (CC BY 4.0)
> - Overall Risk Profile: Predatory Publishing Grab with Foreign Sub-Publisher Trap (Teaches the system how to evaluate 100% Copyright Assignments vs. Administration Deals, "Receipts in Kenya" double-deduction vs. "At Source" royalties, Unapproved Political/Commercial Sync Licensing, Unrecouped Advance Retention of Unexploited Songs, and Power of Attorney clauses.)

PREAMBLE AND RECITALS

THIS EXCLUSIVE SONGWRITER AND MUSIC PUBLISHING AGREEMENT (this "Agreement") is entered into on the 5th day of December, 2026 (the "Effective Date") between SIMBA MUSIC PUBLISHING & SYNC ADMIN LIMITED, of Simba House, Riverside Drive, P.O. Box 22819-00100, Nairobi, Kenya (the "Publisher"), and AMINA WANJIRU, professionally known as "Mina W.", of P.O. Box 88210-00200, Nairobi, Kenya (the "Writer").

WHEREAS, the Writer is an author and composer of musical works (lyrics and melodies); and

WHEREAS, the Publisher wishes to acquire and administer the Writer's musical compositions upon the terms set forth below.

CLAUSE 1: FULL COPYRIGHT ASSIGNMENT OF PAST AND FUTURE COMPOSITIONS

1.1 100% Assignment of All Compositions in Perpetuity. The Writer hereby irrevocably assigns, transfers, and conveys to the Publisher one hundred percent (100%) of the entire copyright and publishing rights (including all economic rights under Section 26 of the Copyright Act, Cap. 130, Laws of Kenya) in and to all musical compositions written or co-written by the Writer prior to or during the Term (the "Compositions"), together with the sole and exclusive right to administer the Compositions in perpetuity throughout the Universe.

> [EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 1.1]
> - Clause ID: 1.1 | Topic: grant_of_rights | Affects: ownership
> - Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
> - Reference Standard Benchmark (KECOBO-PUB-STD-01 & WIPO-PUB-STD-03): "Under a publishing administration standard, the Writer retains 100% of the copyright in the Compositions and grants the Publisher an administration license for a fixed Term of 3 years; or under a co-publishing standard, the Writer assigns at most 50% of the Publisher's Share (25% of total copyright) subject to reversion upon expiry of the Retention Period."
> - Legal Expert Analysis:
> 1. Old-School 100% Publishing Grab vs. Modern Admin / Co-Pub: Assigning 100% of the entire copyright in perpetuity·including both the Writer's entire back catalogue and all new songs·strips the Writer of ownership forever. Modern KECOBO and WIPO standards strongly favour a Publishing Administration model (Writer keeps 100% copyright; Publisher takes a 15%·20% commission for 3 years) or at worst a 50/50 Co-Publishing split with reversion.
> - Mbiu Verified Card Fields:
> - headline: "Publisher takes 100% of song copyrights"
> - key_quote: "irrevocably assigns, transfers, and conveys to the Publisher one hundred percent (100%) of the entire copyright and publishing rights"
> - what_it_says: "You give the Publisher 100% of the copyright in all your old and new songs in perpetuity. It also gets full publishing administration rights forever."

- what_it_means: "You could lose all ownership of the lyrics and melodies of both your old songs and every new song you write during the contract forever."
- comparison_note: "Standard KECOBO and WIPO publishing terms either let the writer keep 100% of copyright under a 3 years administration license or split only the Publisher's Share (50%) with reversion."
- jargon_definitions: {"in perpetuity": "Forever, with no expiration date.", "publishing administration": "Managing the registration, licensing, and royalty collection for the lyrics and melody of a song without taking ownership of the copyright.", "reversion": "The return of song copyright ownership back to the songwriter after an agreed period."}
- fairer_wording: "Under a publishing administration standard, the Writer retains 100% of the copyright in the Compositions and grants the Publisher an administration license for a fixed Term of 3 years; or under a co-publishing standard, the Writer assigns at most 50% of the Publisher's Share (25% of total copyright) subject to reversion upon expiry of the Retention Period."
- ask_them: ["Can we change this to a 3 years publishing administration deal where I keep 100% of the copyright in my songs?"]

CLAUSE 2: TERM AND MINIMUM SONG DELIVERY QUOTA

2.1 Three-Year Initial Term Plus Two Options with 15-Song Annual Quota. The Term of this Agreement shall consist of an Initial Period of 12 months plus two (2) unilateral Option Periods of 12 months each (3 years in total), exercisable by the Publisher. During each 12 months Period, the Writer shall write and deliver at least fifteen (15) wholly original, commercially satisfactory 100% Compositions. If the Writer delivers a co-written song (e.g., 50% split with a producer), it shall count as only half (0.5) of a Composition toward the 15-song quota (requiring 30 co-written songs per year), and the Period shall automatically extend without additional advance until the full quota is satisfied.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 2.1]
- Clause ID: 2.1 | Topic: term_duration | Affects: time
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (WIPO-PUB-STD-03): "Any annual minimum delivery commitment shall not exceed 8 to 10 full or pro-rated compositions per year, and no Contract Period shall be extended beyond 18 months maximum."
- Mbiu Verified Card Fields:
- headline: "15-song quota needs 30 co-written songs"
- key_quote: "If the Writer delivers a co-written song (e.g., 50% split with a producer), it shall count as only half (0.5) of a Composition toward the 15-song quota"
- what_it_says: "You have to deliver 15 full 100% songs per year across 3 years. A 50% co-write counts as only 0.5 of a song, and each 12 months period extends until the quota is met."
- what_it_means: "If you co-write songs at 50% with beat producers, you would have to deliver 30 songs per year to meet the 15-song quota, or your deal could extend for years with no new advance."
- comparison_note: "Standard WIPO publishing guidelines cap delivery commitments at 8 to 10 compositions per year and cap any period extension at 18 months maximum."
- fairer_wording: "Any annual minimum delivery commitment shall not exceed 8 to 10 full or pro-rated compositions per year, and no Contract Period shall be extended beyond 18 months maximum."
- ask_them: ["Can we lower the annual quota to 8 songs (counting co-writes in full) and cap each Period at 18 months max?"]

CLAUSE 3: PUBLISHING ADVANCE AND ROYALTIES ("RECEIPTS IN KENYA" BASIS)

3.1 Recoupable Advance. The Publisher shall pay the Writer a recoupable signing advance of Kenya Shillings One Hundred and Fifty Thousand (KES 150,000) for the Initial Period.

3.2 Royalties Calculated on "Net Receipts in Kenya" After Foreign Sub-Publisher Cuts. Subject to full recoupment of the Advance and Clause 5.2, the Publisher shall credit the Writer with fifty percent (50%) of Net Receipts actually received by the Publisher in Kenya, after first deducting: (a) a twenty percent (20%) Publisher administration fee off the top; (b) up to fifty percent (50%) retained by foreign or regional sub-publishers outside Kenya; and (c) all registration, legal, demo, and collection expenses.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.2]
- Clause ID: 3.2 | Topic: royalties | Affects: money
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Linked Clauses: ["5.2"] (override: "Subject to full recoupment of the Advance and Clause 5.2")

- Reference Standard Benchmark (KECOBO-PUB-STD-01 & WIPO-PUB-STD-03): "Publishing royalties shall be calculated on an 'At Source' basis, paying the Writer 85% of Net Receipts under an administration deal (or 75% of Net Receipts under a 50/50 co-publishing deal), with foreign sub-publishing fees capped at 15% and no double administration deduction."
- Mbiu Verified Card Fields:
- headline: "Stacked deductions cut your publishing pay"
- key_quote: "fifty percent (50%) of Net Receipts actually received by the Publisher in Kenya, after first deducting: (a) a twenty percent (20%) Publisher administration fee off the top; (b) up to fifty percent (50%) retained by foreign or regional sub-publishers"
- what_it_says: "You get 50% of Net Receipts arriving in Kenya. First, foreign sub-publishers keep up to 50%, and then the Publisher takes a 20% fee and all demo costs."
- what_it_means: "Because foreign sub-publishers take up to 50% before money reaches Kenya and the Publisher takes another 20% fee before the 50% split, your actual pay could drop below 20%."
- comparison_note: "Standard KECOBO/WIPO publishing terms calculate royalties 'At Source', paying the writer 75% to 85% of net receipts with foreign sub-publisher fees capped at 15%."
- money_inputs: {"rate": 50.0, "basis": "net", "deductions": ["twenty percent (20%) Publisher administration fee", "fifty percent (50%) retained by foreign or regional sub-publishers", "all registration, legal, demo, and collection expenses"], "quote": "fifty percent (50%) of Net Receipts actually received by the Publisher in Kenya"}
- money_comparison: {"contract_basis": "net", "reference_basis": "net", "contract_rate": "50% of Net Receipts (after 50% foreign sub-publisher cut and 20% admin fee)", "reference_rate": "75% to 85% of Net Receipts (At Source, max 15% sub-publisher fee)"}
- jargon_definitions: {"net receipts": "The amount remaining after foreign sub-publishers, administration fees, and expenses are subtracted from the total publishing money collected."}
- fairer_wording: "Publishing royalties shall be calculated on an 'At Source' basis, paying the Writer 85% of Net Receipts under an administration deal (or 75% of Net Receipts under a 50/50 co-publishing deal), with foreign sub-publishing fees capped at 15% and no double administration deduction."
- ask_them: ["Can royalties be 75% to 85% of Net Receipts calculated 'At Source' with no extra 20% admin fee?"]

CLAUSE 4: UNILATERAL SYNCHRONIZATION APPROVAL AND MORAL RIGHTS WAIVER

4.1 Unrestricted Sync Licensing and Moral Rights Waiver. The Publisher shall have the sole and absolute discretion, without consulting or obtaining the consent of the Writer, to grant synchronization licenses for the use of the Compositions in any television commercial, motion picture, political campaign advertisement, alcohol or betting promotion, or video game, at any fee determined by the Publisher, and to alter the lyrics or arrangement for such uses. The Writer waives all Moral Rights under Section 32 of the Copyright Act (Cap. 130).

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 4.1]

- Clause ID: 4.1 | Topic: moral_rights | Affects: ownership
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (KECOBO-PUB-STD-01 & KE-CAP130-SEC26-33): "The Publisher shall obtain the Writer's prior written consent before granting any synchronization license for commercials, political campaigns, or sensitive product categories, or before making any lyrical or musical alteration to a Composition, preserving the Writer's moral rights under Section 32 of the Copyright Act (Cap. 130)."
- Mbiu Verified Card Fields:
- headline: "Publisher can put songs in ads or politics"
- key_quote: "sole and absolute discretion, without consulting or obtaining the consent of the Writer, to grant synchronization licenses for the use of the Compositions in any television commercial, motion picture, political campaign advertisement"
- what_it_says: "The Publisher gets a synchronization license to put your songs in ads, politics, or betting promos. It can change your lyrics, and you waive your moral rights."
- what_it_means: "Your music could be used in political campaigns or betting ads you disagree with, which could also block you from getting your own brand endorsement deals."
- comparison_note: "Standard KECOBO publishing terms preserve Section 32 moral rights and require the writer's prior written consent for commercial synchronization licenses, political ads, or lyric changes."
- jargon_definitions: {"synchronization license": "Permission to pair a musical composition with visual media such as a TV commercial, film, series, or video game.", "moral rights": "Your rights under Section 32 of the Kenya Copyright Act to be credited as the songwriter and to stop alterations or uses that harm your reputation."}
- fairer_wording: "The Publisher shall obtain the Writer's prior written consent before granting any synchronization license for commercials, political campaigns, or sensitive product categories, or before making any lyrical or musical alteration to a Composition, preserving the Writer's moral rights under Section 32 of the Copyright Act (Cap. 130)."

- ask_them: ["Can we require my prior written consent for all commercial sync licenses, political ads, and lyric changes?"]

CLAUSE 5: REVERSION OF UNEXPLOITED SONGS AND CROSS-CLAUSE OVERRIDE

5.1 Nominal Reversion of Unexploited Compositions. Subject to Clause 5.2 below, if the Publisher fails to secure a commercial recording release or synchronization placement for an unrecorded Composition within 36 months after delivery, the Writer may request in writing that such Composition revert to the Writer.

5.2 Override Blocking Reversion and Direct MCSK Writer's Share Collection. Notwithstanding Clause 3.2 or Clause 5.1, no Composition (whether exploited or unexploited) shall ever revert to the Writer unless and until the Writer has repaid to the Publisher in cash one hundred percent (100%) of the KES 150,000 Advance plus compound interest at eighteen percent (18%) per annum; and the Writer hereby grants the Publisher an irrevocable Power of Attorney to collect one hundred percent (100%) of the Writer's Share directly from the Music Copyright Society of Kenya (MCSK) until such sums are repaid.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 5.2]

- Clause ID: 5.2 | Topic: grant_of_rights | Affects: ownership
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Linked Clauses: ["3.2", "5.1"] (override: "Notwithstanding Clause 3.2 or Clause 5.1")
- Reference Standard Benchmark (KECOBO-PUB-STD-01 & WIPO-PUB-STD-03): "Any Composition that is not commercially exploited within 24 months of delivery shall automatically revert to the Writer free of charge without requiring cash repayment of advances, and the Writer's Share (50%) of public performance and broadcast royalties collected by MCSK shall always be paid directly to the Writer without recoupment."
- Mbiu Verified Card Fields:
- headline: "Blocks song return & takes MCSK Writer Share"
- key_quote: "Notwithstanding Clause 3.2 or Clause 5.1, no Composition (whether exploited or unexploited) shall ever revert to the Writer unless and until the Writer has repaid to the Publisher in cash one hundred percent (100%) of the KES 150,000 Advance plus compound interest at eighteen percent (18%)"
- what_it_says: "This overrides Clause 5.1. Unused songs never get reversion unless you repay KES 150,000 in cash plus 18% interest, and the Publisher takes 100% of your MCSK share via a Power of Attorney."
- what_it_means: "Your unused songs could stay locked up forever unless you pay KES 150,000 plus 18% interest in cash, and the Publisher could take your personal MCSK Writer's Share."
- comparison_note: "Standard KECOBO/WIPO terms grant automatic reversion of unused songs after 24 months with no cash payment or interest, and protect your 50% MCSK Writer's Share from recoupment."
- jargon_definitions: {"reversion": "The automatic return of song ownership back to you if the publisher fails to use the song or when the contract ends.", "recoupment": "Recovering an upfront advance out of earned royalties rather than demanding cash repayment.", "power of attorney": "Legal authority allowing the publisher to sign documents and collect money in your name without asking you each time."}
- fairer_wording: "Any Composition that is not commercially exploited within 24 months of delivery shall automatically revert to the Writer free of charge without requiring cash repayment of advances, and the Writer's Share (50%) of public performance and broadcast royalties collected by MCSK shall always be paid directly to the Writer without recoupment."
- ask_them: ["Can we delete Clause 5.2 so unused songs revert free after 24 months and I keep my 50% MCSK Writer's Share?"]

WHOLE-CONTRACT MAP & REVERSE-CHECK ANNOTATIONS (SYSTEM CONTEXT)

1. Contract-Wide Issues (contract_map.issues)

- Issue 1 (override · Clauses 5.1 & 5.2):

- Explanation: Clause 5.1 states that unrecorded songs can revert to the Writer after 36 months, but Clause 5.2 ("Notwithstanding Clause 3.2 or Clause 5.1...") blocks any reversion unless the Writer repays the KES 150,000 advance in cash plus 18% compound interest, and diverts 100% of the Writer's MCSK share to the Publisher.

- Quotes:

1. "Subject to Clause 5.2 below, if the Publisher fails to secure a commercial recording release or synchronization placement for an unrecorded Composition within 36 months"

2. "Notwithstanding Clause 3.2 or Clause 5.1, no Composition (whether exploited or unexploited) shall ever revert to the Writer unless and until the Writer has repaid to the Publisher in cash"

2. Missing Protections (missing_from_contract)

- audit_rights (No audit rights found): Contract contains no clause permitting the Writer to inspect or audit the Publisher's or sub-publishers' royalty statements.

- accounting_frequency (No regular accounting schedule found): Contract specifies no deadline or schedule (e.g., semi-annually within 60 days) for when the Publisher must send royalty statements and payouts.

- termination_on_breach (No artist termination right for non-payment): Contract contains no right for the Writer to terminate if the Publisher fails to account or pay royalties.

SIGNATURES

SIGNED for SIMBA MUSIC PUBLISHING & SYNC ADMIN LTD: _____ | Date: 5th December, 2026

SIGNED by the WRITER (AMINA WANJIRU p/k/a "Mina W."): _____ | Date: 5th December, 2026